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Santa Monica Delays Vote To Forbid Sleeping In Public

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SANTA MONICA—On Tuesday, August 27, Santa Monica City Council members decided to delay the vote to implement a new law making it illegal for people to sleep in public. The Council received blowback from those who disagree with punishing the homeless community to address the ever-growing homeless crisis in California.

Photo by Dean Bennett

On June 28, the California Supreme Court ruled that cities may punish unhoused individuals for sleeping in public.

The ACLU published a press release dated June 28 citing a violation of the Eighth Amendment stating that, "The brief goes on to argue that Robinson v. California, which ruled that criminalizing a person's status is cruel and unusual punishment and was relied upon by the lower courts in Grants Pass, is consistent with this proportionality principle. Applying the same proportionality principle, the brief stated, punishing unhoused people for sleeping in public when they have no other choice violates the Eighth Amendment."

On April 9, 2024, Cal Matters drafted an article regarding the lack of transparency in what was on homelessness in the state of California. According to a statewide audit done in early April:

"There's so little data available, it's impossible to even tell if several of California's largest homelessness programs are working." — Cal Matters

Senator Josh Hawley(R-MO), member of the House Judiciary Committee, made the following remarks regarding the homeless Bill, AB 2903:

..." We have spent nearly 24 billion taxpayer dollars on homelessness while seeing a 32 percent increase in homelessness during that same span."

As of August 15, the first bill was updated to include reports on allocated funds with the results of what the money was spent on.

On August 27, Governor Gavin Newsom issued a press release promising more solutions to the state's ever-growing homeless crisis.

Newsom cited the most recent two bills he passed. Assembly member Jesse Gabriel authored Bill, AB2835, to place homeless individuals into motels for longer than 30 days.

Bill, AB 3057 Authored by, Assembly member, Lori Wilson, speeds up the process of building more shelters and facilities.

In his press release, Governor Newsom cites $3.3 million for his Home Key project, $1 billion in Encampment Resolution funding, and $4.85 billion in housing assistance programs. Newsom made the following statements:

"In 2023 roughly 181,000 Californians experienced homelessness with approximately 90,000 people in unsheltered conditions." As the audit results mentioned, the numbers are going up, not down.

"The homelessness crisis demands immediate and innovative action, not the status quo. With these new laws, [the] local government, [will]have even more tools to provide housing. I urge them to fully utilize the state's

unprecedented resources to address homelessness."

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